

Court No. - 3

Case :- WRIT - C No. - 38249 of 2015

Petitioner :- Siya Ram

Respondent :- State Of U.P. & 2 Others

Counsel for Petitioner :- R.K. Tripathi, Anupama Tripathi

Counsel for Respondent :- C.S.C., Dr. S.K. Yadav

Hon'ble Krishna Murari, J.

Hon'ble Amar Singh Chauhan, J.

Heard Shri R.K. Tripathi, learned counsel for the petitioner, learned Standing Counsel for the respondent no. 1 and Dr. S.K. Yadav, who has accepted notice on behalf of the respondent nos. 2 and 3.

Petitioner has approached this Court challenging the citation dated 23.06.2015 issued by respondent no. 2 for recovery of a sum of Rs.1,68,556/- from him towards consumption of electrical energy.

Learned counsel for the petitioner contends that petitioner is ready and willing to deposit the entire amount in instalments.

Dr. S.K. Yadav, learned counsel appearing for the respondent-Corporation points out that under Clause 6.14 of the U.P. Electricity Supply Code, 2005, Executive Engineer, D.G.M. and General Manager are empowered with the authority to extend the facility of instalments to the consumers, who are in financial distress. The petitioner may approach the relevant authorities along with representation in this regard.

Accordingly, the writ petition stands disposed of with liberty to the petitioner to make representation before the authority concerned in accordance with the provision of Clause 6.14 of the U.P. Electricity Supply Code, 2005 within a period of four weeks from today and, in case, any such representation is made, the authority concerned shall proceed to decide the same in accordance with law, expeditiously preferably within a further period of one month from the date of making of the representation.

Order Date :- 14.7.2015

VKS